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IT is hereby notified that the Minister of Justice, Legal and Parliamentary Affairs has, in terms of section 29 of the Zimbabwe Independent Complaints Commission Act [*Chapter 10:36*] made the following regulations:—

Section

PART I

PRELIMINARY

Title

1. These regulations may be cited as the Zimbabwe Independent Complaints Commission (ZICC) (Complaints receiving and handling) Regulations, 2026.

Interpretation

2. In these regulations—

"assessment" means the process by which the Commission screens and determines the admissibility and acceptability of a complaint;

"complaint" means an oral, written, telephonic or electronic communication made to the Commission alleging an act of misconduct by a member of a security service;

"complainant" means a person who lodges a complaint;

"complaints handling officer" means in relation to a particular function, means an officer designated by the Commission to perform that function in terms of these regulations and the Act;

"investigation", means an inquiry into a complaint submitted to the Commission;

" investigations officer" means a person appointed in terms of section 12(1) of the Act;

"member of the Ccommission", means a member of the Commission appointed in terms of the subsection 6 (1) of the Zimbabwe Independent Complaints Commission Act [*Chapter 10:34*];

"respondent" means any person against whom a complaint has been lodged.

PART II

Investigations of Complaints

Lodging of complaint

3. (1) Any person may lodge a complaint to the Commission in terms of section 13(1) of the Act.

(2) The complaint referred to in subsection (1) may be filed at any Commission office, regardless of the location where the alleged misconduct took place.

(3) A complaint shall be regarded as lodged at an office for the purpose of subsection (1) if—

(a) it is reduced in writing and handed in at the office; or

(b) it is sent to the office by post or email; or

(c) the complainant completes a complaint receiving form specified in the Schedule at the any Commission Office or online *via* the Commission's website and transmits it electronically to the Commission;

together with the relevant supporting documents.

(4) In filing the complaint, the complainant shall provide the following information as is applicable—

(a) his or her full names and national registration number; and

(b) his or her physical and postal address, telephone or cell phone number, gender, ward, district, province;

(c) where the complaint is a jurist person, copy of its constitutive documents and the written legal authority of the person submitting the complaint to represent the juristic person;

(d) if the person submitting the complaint is acting on behalf of the complainant, an affidavit by the person so submitting testifying why the complainant is not doing so himself or herself.

(5) A complaints handling officer may require a complainant to furnish such additional information and documents as may reasonably be required to make an assessment or to resolve the complaint.

(6) A complaints handling officer with whom a complaint has been lodged shall provide the complainant with all reasonable assistance in completing the complaint form and in providing any additional information and documents that may be required.

Acknowledgement of receipt of complaint

4. Within seven days after a complaint has been lodged in terms of section 3, a complaints handling officer shall send the complainant a written acknowledgement of receipt of the complaint, specifying the reference number assigned to the complaint.

Confidentiality

5. (1) The complainant's particulars shall be kept confidential, the Commission and all members of the Commission's staff shall, take all reasonable steps to comply with this section as read together with section 26 of the Act.

(2) Any member of the Commission or member of staff who without being authorised to do so by the Commission, discloses any information, evidence or documentation referred to in this section, or makes use of any such information for his or her benefit, shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

(3) Where the complainant is a child, a person with a mental disability or a victim of gender-based violence, the Commission, and all members of the Commission's staff shall, subject to this section, take all reasonable steps to keep the complainant's identity and personal information confidential and to prevent the disclosure of this information to any person outside the Commission's offices.

(4) The Commission may disclose the identities and personal information of victims of gender-based violence only when the victim

is an adult and has, after counselling, consented to his or her identity and information being disclosed.

(5) If a complainant has requested confidentiality as provided in these regulations but the Commission considers that disclosure of his or her personal or other information is necessary to resolve the complaint or achieve the objects of the Commission, the investigations officer shall, in writing—

(a) inform the complainant which information the Commission considers must be disclosed and why it must be disclosed; and

(b) request the complainant's written consent to disclose the information.

(6) If the Commission considers that disclosure of the personal information of a complainant who is a child is necessary to resolve the complaint, the investigations officer shall, in writing—

(a) inform the complainant's parents or guardian which personal information the Commission considers must be disclosed and why it must be disclosed and request the complainant's guardian to give written consent for the disclosure of the information;

(b) if a person refuses to consent to the disclosure of personal or other information, having been requested to do so, the Commission may decline to deal with the complaint;

(c) if the Commission declines to deal with a complaint, it shall inform the complainant, in writing and within seven days of its decision and the reason for the refusal.

(7) The Commission shall ensure that all complaints are treated with strict confidentiality through secure data storage systems, restricted access to case files, and strict adherence to data protection policies.

(8) Only authorised personnel are permitted to handle complaint-related information, and all staff members are required to sign confidentiality agreements.

(9) Additionally, measures such as anonymising sensitive data and using secure communication channels further enhance the protection of complainant information.

(10) Retaliation against complainants or witnesses is prohibited and subject to penalties, including administrative sanctions, disciplinary action against offending officers, and legal prosecution where applicable.

(11) The Commission may also provide protective measures such as anonymity safeguards, relocation assistance, and legal support to ensure the safety and well-being of complainants and witnesses.

Register of complaints

6. (1) The Commission shall keep a register, to be known as the Complaints Register.

(2) The particulars of every complaint received shall be entered in the Complaints Register, and each complaint shall be assigned a sequential number in the order in which it is received during that year.

Establishment of committees

7. (1) The Commission shall establish specialised committees to enhance its efficiency and these shall be as follows—

(a) Complaints Assessment Committee;

(b) Investigations Committee.

Appointment of a Complaint Assessment Committee

8. The Commission shall appoint a Complaints Assessment Committee comprised of the following—

(a) a member of the Commission, who shall be the chairperson of the Investigations Committee;

(b) committee members, appointed from staff of the Commission as may be determined by the Commission;

(c) an observer appointed by the appropriate head of security service as provided for in terms of section 6(6), (7) and (8) of the Act.

(d) one member from the staff of the Commission appointed in paragraph (b) shall be designated the minuting secretary.

Functions of Assessment Committee

9. The Complaints Assessment Committee shall be responsible for the preliminary assessment and institutional filtering of all complaints received by the Commission and shall, without limiting its general mandate, perform the following functions—

(a) receive and screen complaints for jurisdiction, admissibility, and *prima facie* merit;

(b) classify complaints and determine their appropriate procedural pathway;

(c) recommend whether a complaint must be investigated, referred, mediated, dismissed, or otherwise disposed of;

(d) recommend interim protective measures where required;

(e) maintain records of all assessments and decisions; and

(f) advise the Commission on trends, risks, and policy implications arising from complaints.

(g) any other function assigned to it by the Commission.

Assessment process

10. (1) Upon receipt of any complaint, the Committee shall conduct an initial assessment to determine the admissibility and acceptability of the complaint which shall be based on the following—

(a) jurisdiction of ZICC as provided by the Constitution, the ZICC Act, Regulations and any other law;

(b) availability of sufficient preliminary information; and

(c) compliance with submission requirements.

(2) The assessment process will determine whether the complaint warrants—

(a) a preliminary investigation or inquiries only;

(b) a full investigation in line with sections 15 and 16 of the Act;

(c) no investigation;

(d) referral; and

(e) any other steps as the Committee deems necessary.

(3) Where the Committee decides a complaint is appropriate for referral, the complaints handling officer may refer the matter to—

(a) the relevant department within the Commission;

(b) any other Commission, that in the opinion of the complaints handling officer may appropriately deal with the matter;

(c) any government institution, court or statutory body that in the Officer's opinion will best deal with the complaint satisfactorily.

Establishment of the investigations committee

11. (1) There shall be an Iinvestigations Committee which shall be composed of the following members—

(a) a member of the Commission, who shall be the Chairperson of the Investigation Committee;

(b) committee members, appointed from staff of the Commission as may be determined by the Commission of which one must be from the Complaints Handling and Investigation Unit;

(c) an observer appointed by the appropriate head of security service as provided for in terms of section 6(6), (7) and (8) of thelook into the provisions of the Act.

(d) one member from the staff of the Commission appointed in paragraph (b) shallould be designated the Investigation Committee Minuting Secretary;

(e) experts may be appointed to support any investigations unit as and when required.

Functions of Iinvestigations Committee

12. The Investigations Committee shall be responsible for the control, supervision, and quality assurance of all investigations conducted by or on behalf of the Commission and shall, without limiting its general mandate—

(a) approve investigation plans and terms of reference;

(b) determine the scope and direction of investigations;

(c) authorise investigative methods and tools;

(d) monitor progress and timelines;

(e) ensure legal and procedural compliance;

(f) review investigation files for evidential sufficiency;

(g) recommend appropriate outcomes to the Commission;

(h) coordinate with relevant external authorities; and

(i) initiate or recommend systemic or thematic investigations.

Details of alleged misconduct

13. (1) The complaint must include the following information regarding the alleged misconduct—

(a) a detailed description of the alleged misconduct;

(b) when and where the alleged misconduct took place;

(c) names or descriptions of involved officers (if known);

(d) any supporting evidence (documents, videos, witness statements);

(e) information regarding any steps the complainant has taken to resolve the issues arising from the dispute that is the subject of the complaint;

(f) if the dispute is the subject of any court proceedings together with the results of any court process;

(g) the grounds on which the complaint is based;

(h) nature and extent of any injury or suffering;

(i) the remedy or redress, if any, which the complainant seeks through lodging of the complaint;

(2) The complaints handling officer or the Commission may require a complainant to furnish such additional information and documents as may reasonably be required to accurately assess or resolve issues raised in the complaint.

(3) The Commission shall take steps to recover important documentation when such documentation is held by the State or other parties and a complainant is unable to access same.

Procedure after rejection of complaint

14. If the Committee rejects the complaint, the Committee shall forward the complaint together with a recommendation and justification of the rejection to the Head of Department for the Complaints Handling and Investigations Unit who has the power to request the complainant to supply information that would assist the Commission in deciding whether to accept or reject the complaint and decide thereafter to either—

(a) confirm the decision by the Committee;

(b) if the information supplied warrants the complaint to be valid, refer the matter back to the Committee together with reasons thereto, for the Committee to reconsider.

PART III

INVESTIGATION OF COMPLAINTS

Preliminary investigation

15. (1) In cases deemed appropriate for a preliminary investigation, the investigation shall be conducted and concluded within sixty days from the date of submission of a complaint.

(2) The Investigating Officer shall on behalf of the Investigation Committee contact the complainant, victim or any witness as the case may be for any further details pertaining the investigation.

(3) The Investigation Officer may collect and assess documentation or physical evidence that is relevant to the investigation.

(4) Upon concluding a preliminary investigation, the Investigation Committee may either recommend that the complaint file be closed or that a full investigation is required.

Circumstances where full investigations may not be carried out

16. The Commission shall not action a complaint if—

(a) the complaint is of a vexatious or frivolous nature;

(b) the complainant fails to supply the required information making it impossible to investigate;

(c) the investigation department after diligent efforts has been unable to obtain information necessary to further process or substantiate the complaint; and

(d) the complaint has already been heard and finalised by the Commission.

Investigation procedure

17. (1) If the complaint falls within the mandate of the Commission and meets the threshold for an independent and robust investigation, the investigations appropriate officer shall—

(a) before the launch of a full investigation, prepare an investigation plan which must be approved by the Head of Office in charge of Complaints Handling and Investigations;

(b) set out in a protocol or policy, the required contents of each investigation plan.

(2) The full investigation shall be concluded as soon as practically permissible, within the timelines set by the head of the Complaints Handling and Investigations departments or the Commission.

(3) For purposes of the investigations, the Commission may exercise all the powers as provided for in the Act and may gather any information it considers necessary by such lawful means as it may deem appropriate.

(4) During Commission investigations, an investigation officer may, at any time, request the assistance of the Zimbabwe Republic Police and Military Police which shall be obliged to assist the Commission with any lawful request.

(5) Whenever possible, the investigating committee shall interview the complainant, the person complained against, other victims and witnesses, and where appropriate record such interviews and take statements.

(6) Upon approval by the Commission, the investigating committee may *subpoena* any person for purposes of an interview or collecting supporting documents or physical evidence.

(7) Where the complainant or the witness is a minor, consent to interview a minor shall be sought from the parent or guardian:

Provided that—

(a) such consent shall not be unreasonably withheld;

(b) the interview shall take place in the presence of the parent or guardian and where appropriate a social worker or counsellor may be present.

(8) An investigation committee shall take reasonable steps to keep the complainant informed of the progress of an investigation and shall duly record the information received and or observations made and take measures to ensure the safe custody of any document or article received.

(9) Any person who appears before an investigating committee in an investigation referred to in subsection (3) shall be entitled to be represented by a legal practitioner at his or her own expense, and the investigations appropriate officer shall ensure that the person is aware of that right.

(10) An investigation officer—

(a) shall take reasonable steps to keep the complainant informed about the progress of the investigation;

(b) who is conducting an investigation referred to in subsection (1) shall keep a proper record of whatever he or she does in the course of the investigation.

(11) Upon completion of investigations, the Committee shall submit the report to the head of the investigations department.

(12) The head of the investigations department shall, upon receiving and approving the completed investigation, forward the completed investigation and recommendations to the Commission.

(13) The Commission shall review the completed investigation for quality and completeness and ensure that the balance of probability standard has been satisfied.

Notice of adverse allegations

18. (1) Before a hearing, the Investigation Committee must notify any individual allegedly responsible for any alleged misconduct in writing—

(a) that the Commission is investigating a complaint against him or her together with a summary of the allegations;

(b) informing the individual of the nature and circumstances of the alleged misconduct that is the subject of the complaint, in sufficient detail to enable the individual to respond adequately to the allegations.

(2) Information about the source of the allegations may be withheld where the Commission considers it necessary or prudent to do so and the notice shall set out the location, date and time of the planned hearing or interview, and the modalities and restrictions for exercising a right of reply.

(3) The Commission retains the discretion to withhold prior notice when circumstances demand it and shall keep a record of such decision and provide notice when it is appropriate.

(4) Where a person is adversely implicated for the first time in a public hearing the Commission shall take reasonable steps to notify the person implicated and afford him or her an opportunity to respond at a subsequent hearing or by way of written representations.

(5) Notification in terms of these regulations shall be in writing and be delivered by registered mail to the last known address of the implicated individual, or the individual's legal representative:

Provided that—

(a) where the postal service is unreliable, delivery may be made by courier service or personal service;

(b) where the implicated individual cannot be located, the Commission may make general public announcements in appropriate places, as well as publications in newspapers and *via* the internet.

(6) The right of reply for the implicated person may be in the form of a written response setting out his or her version of the facts before or after the hearing or interview takes place or at a separate

public or private interview, subject to available resources and the dictates of fairness in each case.

Criminal investigations

19. (1) Where a complaint involves criminal conduct, the Commission may collaborate with relevant law enforcement agencies.

(2) Any evidence gathered shall be handled in accordance with applicable laws governing criminal investigations.

PART IV

Proceedings and Related Powers

Notice of hearings

20. (1) Where the Commission resolves to conduct a hearing, it shall cause a written notice, specifying the date, time and place of hearing to the complainant and the respondent, calling upon parties to give evidence regarding the complaint being investigated.

(2) For any hearing or inquiry conducted under this Part, the Commission possesses the same powers, rights, and privileges as those granted to a Commissioner by the Commissions of Inquiry Act [*Chapter 10:07*], except for the authority to order the detention of an individual. Sections 9 to 18 of that Act apply, with the necessary modifications, to any hearing or inquiry carried out by the Commission under the ZICC Act, as well as to individuals summoned to provide evidence or giving evidence during the hearing or inquiry.

(3) The Commission has the authority to request the presence of a police officer during any investigation, hearing, or inquiry to maintain order. If necessary, the Chairperson may ask the officer to remove any individual who is acting in a contemptuous manner.

(4) The Commission shall develop procedures governing hearings, including witness participation, presentation of evidence, and protection of identities where necessary.

(5) A full record of hearings shall be maintained, and key findings shall be included in the Commission's reports.

Identification parades

21. (1) Identification parades shall be conducted in accordance with established police procedures relevant law, ensuring the rights of all parties are upheld and the Commission's shall collaborate with Police officers involved in the organizing the identification parade.

(2) Any complainant or witness participating in an identification parade shall be provided with protection where necessary.

Report and findings

22. At the conclusion of the hearing or as soon thereafter as possible, the Chairperson of the investigations committee shall only submit to the Commission a detailed report containing the following—

(a) all the steps taken during the investigation;

(b) any relevant documents or other material collected in the course of the investigation;

(c) the outcome and findings of the investigation;

(d) recommendations arising from the investigation including recommendations or remedial action to be taken to resolve the matter.

Subpoena

23. (1) The Commission may *subpoena* a natural person or a representative of a legal personany person to—

(a) appear before the Investigations Committee for an interview and to produce any documents or other things in his or her custody or control that are relevant and necessary to the subject of the investigation or inquiry;

(b) at a hearing to testify under oath and to produce any documents or other things in his or her custody or control that are relevant and necessary to the subject of the investigation or inquiry.

(2) *Subpoenas* may be issued sparingly and only as a last resort when a person does not volunteer testimony or evidence that is relevant and necessary to meet the objectives of the Commission.

(3) The Commission may issue a *subpoena* at a meeting with a quorum as provided in the Act.

(4) The Commission Chairperson may issue a *subpoena* when it is not possible to timeously convene a Commission meeting and only when there are urgent and exceptional circumstances justifying the exercise of such power.

(5) A *subpoena* shall—

(a) contain the time and place where testimony shall be taken;

(b) indicate the relevant subject matter of the testimony;

(c) provide reasonable notice to attend and testify;

(d) inform the recipient of the broad nature of any adverse allegations about which he or she may expect to be questioned;

(e) be issued through print and electronic media;

(f) be signed by a commissioner and;

(g) be personally served by a member of the staff of the Commission or by a sheriff, or police officer on an authorised individual delivering or tendering to him or her one of the duplicates of the *subpoena*, failing which it may be served—

(i) directly at an individual's residence or business place;

(ii) by leaving one of the duplicates with an adult member of his or her family or;

(iii) to his or her employer ;

(iv) by affixing one of the duplicates of the *subpoena* to some conspicuous part of the house or homestead in which the person summoned ordinarily resides;

(v) by mail to the individual''s most recent known address;

(vi) by email to the individual's most known recent address.

(6) A *subpoena* for documentary and material evidence shall—

(a) not be vague or unduly burdensome;

(b) identify or describe the nature of the documents or objects sought;

(c) provide a reasonable time and location for delivery of the evidence.

(7) Every person on whom a subpoena is personally served shall sign a receipt on the back of the other duplicate.

(8) A *subpoena* shall explain the possible consequences of non-compliance, as well as the procedure to be followed if the person is unable or unwilling to comply.

(9) Every witness testifying before the Commission shall be entitled to the reimbursement of costs incurred which shall be under the prescribed tariff.

(10) Objects and documents obtained through a *subpoena* shall be returned to the subpoena recipient within a reasonable time.

(11) If objects and documents disclose evidence of criminal activity, a prosecutor shall be allowed to apply to a court for the retention of the evidence subject to the Act.

(12) If the Commission believes that the production of any article may adversely affect any intended or pending judicial proceedings or the conduct of any investigation carried out with a view to the institution of judicial proceedings, the Commission shall take steps aimed at the prevention of any undue delay in or the disruption of such investigation or proceeding.

Search and seizure

24. (1) The Commission shall take steps to preserve documents, materials or evidence relevant to the subject matter of its inquiry.

(2) The Commission may apply to a Magistrates Court, on an ex parte basis, for a warrant of search and seizure, applicable to both natural and legal persons, where there are reasonable grounds to believe that—

(a) there are, in any building or place, documents or things relevant to the subject matter of the inquiry or investigation;

(b) the articles or documents are important for purposes of achieving the Commission's mandate;

(c) any person in control of the building or place has refused to cooperate with the Commission, records or objects shall be destroyed, damaged, altered or concealed if not recovered and preserved.

(3) In deciding to apply to the Magistrate Court for a warrant of search and seizure, the Commission shall adopt the same decision-making process as that for the issuing of a *subpoena*.

(4) In applying for a search warrant, the Commission's application shall specify—

(a) the duration of the warrant, which shall be limited to the time that is minimally necessary to achieve the stated purpose;

(b) the Sheriff of the Court or the uniformed police which shall execute the warrant at the premises in question;

(c) the period of removal and retention of documents and objects, which shall not be for an unreasonable period;

(d) the need to inspect and examine documents and objects, the making of copies of all or part of any articles found, and the asking of pertinent questions of every person in control of the premises;

(e) that the subject of the search is entitled to accompany those searching or to designate another person to serve as a witness during the search;

(f) that where there are reasonable grounds to believe that any article or thing found in such premises are mentioned in the warrant, such items shall be seized after having issued a receipt in respect thereof;

(g) that the officer searching shall make a detailed written record of the search and any seized objects, and that this

record shall be signed by the officer concerned as well as by the subject of the search and a witness proposed by the subject;

(h) that where the subject refuses to permit the removal of property on the basis that it contains privileged information, the matter shall be referred to a court and the property sealed and temporarily placed in the custody of the Court Clerk or Registrar.

(5) Where a search is conducted arbitrarily or unreasonably, the Commission shall be precluded from using or relying on evidence that has been obtained in a manner that violates provisions of Chapter 4 of the Constitution Any search and seizure in the premises of the security services shall be conducted in the presence of the senior officer in charge of the premises.

Departures from parts of the above sections on complaints handling procedure in certain circumstances

25. Notwithstanding anything to the contrary contained in the complaints handling procedure, the Commission may at any time—

(a) depart from or authorise the departure from any provision of the complaints handling procedure; or

(b) condone any irregularity or departure from any provision of the complaints handling procedure; where the departure or irregularity has not resulted or will not result in a substantial miscarriage of justice.

PART V

General

Accessibility

26. (1) Every witness has the right to provide their statement in their native language.

(2) The Commission shall implement special measures to facilitate statement-taking for vulnerable persons including elderly persons and persons with disabilities.

Information on the possible consequences of providing a statement

27. (1) The Commission shall inform deponents of all potential subsequent uses of their statements in line with its mandate, including but not limited to—

(a) inclusion of the deponent's name in the final report;

(b) citation of excerpts from the deponent's statement in the final report;

(c) forwarding of the statement to investigators, prosecutors, or courts, subject to the provisions of the Act; and

(d) permitting public access to review the statement following the Commission's dissolution.

(2) Where necessary, the Commission shall obtain the deponent's prior written consent for any legally significant use of their statement, with such consent duly reflected in the statement form.

Procedures for taking and recording statements

28. (1) Statements shall be taken following a standardised format, with questions strictly confined to matters relevant to the Commission's mandate.

(2) The Commission shall ensure that statements are recorded consistently, accurately, and comprehensively while upholding the dignity of the deponent.

(3) Deponents shall have the option to provide statements orally or in writing.

(4) Subject to resource availability and security considerations, statements may be recorded using audio or video equipment, with the deponent's consent.

(5) Deponents shall be required to provide a solemn undertaking regarding the truthfulness and completeness of their statements.

(6) Statements shall be signed by both the deponent and the statement taker, with details of the date, time, location, and all present individuals duly recorded. If a statement is not signed, the reasons shall be documented.

(7) Statements shall be taken in a private setting, however, where appropriate, the Commission may permit—

(a) deponents to be accompanied by a friend, family member, or legal representative; and

(b) statements to be taken in a group setting, where culturally appropriate.

(8) If a statement is not taken privately, the statement taker shall document this, noting the procedure adopted and the justification for it.

(9) The Commission shall ensure that staff are trained and equipped to effectively interview children, persons with disabilities, illiterate individuals, and victims of sexual violence or abuse.

Support and referrals

29. (1) Where resources permit, the Commission shall have staff or designated professionals available to provide medical, psychological, or emotional support to deponents during statement-taking.

(2) Commission staff shall be trained to inform deponents of available public and private services for medical, psychological, emotional, and economic support.

Inspection of security facilities

30. (1) The Commission shall have the mandate to inspect detention centres, police holding cells, and other facilities under the control of security forces to assess compliance with legal and human rights standards as provided for by section 5(c) of the Act.

(2) Inspections shall be conducted at least once a year for each state detention facility periodically or in response to specific complaints.

(3) The Commission shall prepare detailed reports on inspections, highlighting any irregularities and making recommendations for remedial action.

(4) Security agencies shall be required to facilitate access to facilities and provide relevant documentation upon request.

Monitoring and reporting

31. (1) The Commission will prepare annual reports detailing the complaints received, investigations carried out, and results achieved to improve accountability and build public trust.

(2) The Commission shall develop a framework for monitoring and evaluating its investigative and conflict prevention efforts.

(3) Regular reports shall be compiled on trends, case outcomes, and effectiveness of interventions.

(4) The Commission shall conduct periodic reviews to improve operational efficiency and impact.

SCHEDULE (*Section 3*(*3*)(*c*))

Complaint Receiving Form

Notice

Thank you for visiting the Zimbabwe Independent Complaints Commission (ZICC). The ZICC is constitutionally mandated to receive and investigate complaints from members of the public about misconduct by members of the security services, as provided by section 210 of the Constitution of Zimbabwe (Amendment No. 20/2013). All information provided here will be treated with strict confidence.

Section 1: Complainant Details

1. Full Names: _____
2. National ID/Passport Number: _____
3. Date of Birth: _____
4. Gender: □ Male □ Female
5. Contact Information:
   - o Phone Number: _____
   - o Email Address: _____
   - o Physical Address: _____
6. Capacity in which you are making the complaint (Tick one):
   - o □ Direct victim of the incident
   - o □ Representative of the victim (e.g. legal guardian, lawyer)
   - o □ Other (please specify): _____

Section 2: Details of the Person Being Complained Against

1. Full Name: _____
2. Number/Rank/Designation: _____
3. Department/Agency: _____
4. Physical Description (if full details are unknown):
5. Contact Information (if known):
   - o Phone Number: _____
   - o Email Address: _____
6. Other Identifying Details:

Section 3: Incident Details

1. Date and Time of Incident: _____
2. Location of Incident: _____
3. Description of Incident: (Provide a detailed account, including what happened, who was involved, and other relevant details.)

_____

_____

_____

_____

_____

_____

_____

_____

_____

4. Nature of Complaint (Check all that apply):

- □ Death in custody of any member of a security service
- □ Death as a result of actions of any member of a security service
- □ Unjustified discharge of an official firearm by any member of a security service
- □ Rape by a member of a security service
- □ Rape while in the custody of a security service

- □ Torture of or assault against any member of a security service while on duty
- □ Practice or conduct by security service members which violate section 206(2) and (3) of the Constitution of Zimbabwe, including:
  - Failure to respect fundamental rights and freedoms, democratic values, and principles enshrined in the Constitution
  - Failure to respect the rule of law
- □ Practice or conduct by security service members which violate Section 208 (2), (3), and (4) of the Constitution of Zimbabwe, including:
  - Acting in a partisan manner
  - Furthering the interest of any political party or cause
  - Being active members or office-bearers of any political party or organisation
  - Being employed or engaged in civilian institutions except during public emergencies
- □ Other violations of human rights by a member of a security service (please specify): _____
  - _____
  - _____

5. Were there any witnesses?

   □ Yes □ No

If yes, provide their names and contact information:

_____

_____

_____

_____

Section 4: Evidence Submission

1. Do you have any supporting evidence?

   □ Yes □ No

If yes, describe the evidence (e.g., photographs, video recordings, documents, physical exhibits):

_____

_____

_____

_____

2. Attach supporting documents (electronic files or photocopies if submitting a hard copy).

_____

_____

_____

_____

Section 5: Resolution Sought

1. What action would you like the ZICC to take regarding this complaint?

_____

_____

_____

_____

Section 6: Declaration

I, the undersigned, hereby declare that the information provided is true and accurate to the best of my knowledge. I understand that submitting false information may result in legal consequences.

Signature: _____

Date: _____

Internal Use Only (To be completed by the receiving officer)

1. Name of Person Receiving: _____
2. Designation: _____
3. Classification: _____
4. Date Received: _____
5. Time Received: _____

6. Remarks: _____
7. Complaint Received Register Number: _____
8. Signature of Receiving Officer: _____
9. Supervisor's Name: _____
10. Supervisor's Signature: _____
11. Date and time Reviewed by Supervisor:

Disposal (For ZICC to Complete)

1. Action Taken:

_____

_____

2. Outcome:

_____

_____

3. Officer Responsible for Disposal:
   - o Name: _____
   - o Designation: _____
   - o Signature: _____
4. Date of Disposal: _____
5. Filling ref: _____